

complaint

Miss J complains Zurich Insurance PLC unfairly refused her claims for subsidence in 2006 and for storm damage in 2013 and 2015.

background

Miss J made a subsidence claim in 2006. But the loss adjuster said there was no evidence of subsidence. So her claim was refused.

She made a claim for storm damage in 2013. But Zurich refused to pay it. It said the damage to her roof was gradually occurring and a result of it not being maintained, not caused by a storm. And as she didn't have accidental damage (AD) cover it refused to pay for damage to the inside of her house. In 2015 Miss J made another claim for storm damage. But Zurich refused to pay this too. Again, it said the damage was gradually occurring and due to a lack of maintenance.

Our adjudicator didn't think the complaint should be upheld. She said there was no evidence of subsidence. So she couldn't uphold this part of her complaint. She didn't think the main cause of the damage to the roofs had been storms. So she said Zurich had acted fairly when it refused these claims. Miss J disagreed, so the complaint has been passed to me.

my findings

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

Having done this, I'm not upholding it.

the subsidence claim

A 2006 loss adjuster's letter to Miss J says there's no evidence of subsidence damage. Miss J hasn't provided anything to show there had been subsidence. So I can't uphold this part of her complaint.

the storm claims

It looks like there were storms around the time Miss J made both claims. Her 2015 policy covered her for storm damage. I haven't seen her 2013 policy document, but I think it probably did cover storm damage. But I don't think the main cause of damage for either claim was a storm. Miss J says, in 2013, her roof was damaged by a storm blowing, and smashing, greenhouse glass onto it. But there's nothing to support this. And, in 2015, she says a branch was blown against the chimney. But there isn't anything to support this either.

The surveyor's comments for both claims show the roofs to be in a poor state of repair. The main roof has been estimated at between 60-80 years old. The mortar and nails were very worn. Temporary repairs had been made. And the flat roof was quite old for its type.

Miss J says the roofs had been maintained. But it doesn't look, from the photos and reports, as if they had been. And she says the damage to the roofs was caused by subsidence. But I haven't seen anything that makes me think this is true.

A 2015 roofer report says various materials had blown off the main roof. I accept this may have happened. But I think, for both claims, a storm would have just highlighted the poor condition of the roofs. They weren't the main the cause of any damage.

So the main cause of the damage to the roofs wasn't a storm. Instead it does look like it was gradually occurring, because of a lack of maintenance. And this cause of damage is excluded by Miss J's 2015 policy. And it's very likely the 2013 policy excluded it as well. So I think it was reasonable of Zurich to refuse to pay under the storm part of her policy in both 2013 and 2015.

In 2013 Zurich refused to pay for any internal damage. This was fair as Miss J didn't have AD cover at the time. She did have it in 2015. But I haven't seen anything that makes me think there was any internal damage.

So Zurich acted fairly when it refused to pay Miss J's 2013 and 2015 claims. So I'm not upholding these parts of her complaint.

Daniel Martin

my final decision

For the reasons given above, I'm not upholding Miss J's complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Miss J to accept or reject my decision before 29 February 2016.

ombudsman